

Party Discipline Diminishes Canadian Democracy

By David Kilgour and John Kirsner

Representative democracy in Canada is so dominated by political parties that some experts believe the party discipline exerted on most votes in our House of Commons and provincial legislatures is the tightest in the democratic world. Defenders of our model argue many Canadians prefer it this way because every candidate for each party can be assumed at election time to have identical views on every issue. Others contend our executive democracy, patterned on a system prevailing in Great Britain about three centuries ago, requires iron party discipline if our fused legislative and executive branches of government are to function effectively. Another reason, probably the most important, is that our practice makes life easier for leaders of both government and opposition parties.

Unlike parliamentary systems in places such as Australia, virtually every vote in Canadian legislatures is considered potentially one of non-confidence in a government. Even a frivolous opposition motion to adjourn for the day can be deemed by a cabinet, if lost, to have been one of non-confidence. The whips of government parties have for decades used the possibility of an early election to push their members into voting the respective party line. The opposition attitude is so similar that we have the recent spectacle of both opposition parties in our House of Commons arguing that a free vote on an abortion resolution would "rip out the heart" of our parliamentary system of government. The constituents of both provincial and federal legislators would be the real winners if party discipline is loosened. Private members from both government and opposition benches could then take positions on government bills and other matters based on pleasing constituents instead of their respective party hierarchies.

A key recommendation of the all-party McGrath report on House of Commons reform favoured more free votes by calling for the inclusion in any opposition motion intended to bring down a government an explicit provision that its passage would constitute a vote of non-confidence. Another solution to excessive party discipline is the "positive non-confidence rule" used in the West German Bundestag. It prescribes that an administration is only defeated if a successful opposition non-

confidence motion also names a new chancellor. In the case of the defeat of the minority Clark government in 1979 on its budget, for example, the West German rule would have left Clark in office unless the Liberals, New Democrats and Social Credit MP's had agreed simultaneously on a new prime minister who could hold the confidence of a majority of MP's.

A study of the Thirty-Second Assembly of Ontario (1981-1985) indicated legislators voted in uniform party blocs about 95 percent of the time. The same basic pattern applies in the present and at least the previous two House of Commons elected in Ottawa. This record suggests the various party leaders could cast a proxy on behalf of all their followers without bothering to have them physically present for votes. It also overlooks that a majority or even minority government can function effectively without stratospheric levels of party solidarity.

In the American Congress, where admittedly there is a strict separation of powers between the executive and legislative branches of government, legislation does get passed with far less party loyalty. So different are the practices in our two countries that *The Congressional Quarterly* defines party unity votes as ones in which at least 51 percent of members of one party vote against 51 percent of the other party. Under this definition, itself astonishing to Canadian legislators, the *Quarterly* notes that for the years 1975-1982 party unity votes occurred in only 44.2 percent of 4,417 recorded Senate votes and in only 39.8 percent of ones in the House of Representatives. This sample, moreover, includes the years 1976-1980 when the Democrats controlled The White House and both branches of Congress.

A consequence of the American practice of voting one's constituents' presumed interests first is the longtime legislative coalition of Southern Democrats and Republicans.

During 1981-82, the height of the "boll-weevil" era, the group was successful more than 85% of the time because a majority of American legislators from both parties shared a number of areas of agreement. Whether one agreed with them or not is irrelevant; the point is that Canadian bloc voting makes bi or tri-partisan agreement on anything in our legislatures exceedingly rare.

If party discipline in Canada is relaxed, it would be easier for, say, Atlantic MP's to defy their three party establishments, if need be, in support of maritime issues. Coalitions composed of members from all parties could exist for the purpose of working together on matters of common regional or other concern. The adversarial attitudes and structures now entrenched in Parliament and our legislatures by which opposition parties oppose virtually anything a government proposes might well change in the direction of all parties working together in the national interest.

Following redistribution this summer, each Member of Parliament will represent on average of about 87,000 voters. At present, few government and opposition MP's have any real opportunity to put their constituents' first in votes in the House of Commons. Real power is concentrated in the hands of the three party leaderships. Canadian democracy itself would benefit substantially if we put our present mind-numbing party discipline where it belongs, in the history books.